

DEPARTMENT OF VETERANS AFFAIRS

Justification and Approval

For

Exception to Fair Opportunity Memo

Acquisition Plan Action ID: 36C242-26-AP-0855

1. Contracting Activity:

Department of Veterans Affairs (VA), NCO2
2875 Union Road
Suite 3500
Cheektowaga, NY 14227

VISN 2 Heath Care Facilities requirement supports:

Facility	Business Address	City	State	Zip
James J. Peters Medical Center	130 W Kingsbridge Rd	Bronx	NY	10468
Finger Lakes Health Care	76 Veterans Avenue	Bath	NY	14810
Buffalo VA Medical Center	3495 Bailey Avenue	Buffalo	NY	14215
Albany Stratton VA Medical Center	113 Holland Ave	Albany	NY	12208
East Orange VA Medical Center	385 Tremont Ave	East Orange	NJ	07018
Hudson Valley Health Care	2094 Albany Post Rd	Montrose	NY	10548
Margaret Cochran Corbin VA Campus	423 East 23rd Street	New York	NY	10010
Brooklyn VA Medical Center	800 Poly Place	Brooklyn	NY	11209
Northport VA Medical Center	79 Middleville Rd	Northport	NY	11768
Canandaigua VA Medical Center	400 Fort Hill Avenue	Canandaigua	NY	14424
Syracuse VA Medical Center	800 Irving Ave	Syracuse	NY	13210

- 2. Description of Action:** This activity proposes to issue a firm-fixed price task order against VA National Acquisition Center (NAC) Digital Imaging Network-Picture Archiving and Communications Systems (DIN-PACS) contract SPE2D116D0013 awarded to AGFA Healthcare. This procurement is for Maintenance Services to support VISN 2's existing AGFA Radiology & Cardiology Picture Archive and Communication System (PACS).

The period of performance shall be for 12 months, May 15, 2026 to May 14, 2027. The total estimated value is \$2,263,240.94. The vendor does not offer option years.

This requirement was previously procured under contract number SPE2D1-16-D-0013 36C24225F0063 for a period of performance of May 15, 2024 to May 14, 2026.

3. **Description of Supplies or Services:** All items to be covered under this task order are listed under the VA/DLA National DinPACS contract: SPE2D116D0013. It includes licensing, service maintenance and support of all PACS hardware.

Statutory Authority: The statutory authority permitting an exception to fair opportunity is Section 41 U.S.C. 4106(c) as implemented by the Revolutionary FAR Overhaul (RFO) Federal Acquisition Regulation (FAR) 16.507-6(b):

() RFO FAR 16.507-6(b)(1): The agency need for the supplies or services is so urgent that providing a fair opportunity would result in unacceptable delays.

(x) RFO FAR 16.507-6(b)(2): Only one awardee is capable of providing the supplies or services required at the level of quality required because the supplies or services ordered are unique or highly specialized.

() RFO FAR 16.507-6(b)(3): The order must be issued on a sole-source basis in the interest of economy and efficiency because it is a logical follow-on to an order already issued under the contract, provided that all awardees were given a fair opportunity to be considered for the original order.

() RFO FAR 16.507-6(b)(4): It is necessary to place an order to satisfy a minimum guarantee.

() RFO FAR 16.507-6(b)(5): For orders exceeding the simplified acquisition threshold, a statute expressly authorizes or requires that the purchase be made from a specified source". The statutory authority permitting an exception to fair opportunity for this action is 38 U.S.C. 8127(c), known as the Veterans First Contracting Program which provides the authority to directly contract with a Service-Disabled Veteran-Owned Small Business (SDVOSB) or a Veteran-Owned Small Business (VOSB).

4. **Rationale Supporting Use of Authority Cited Above:** AGFA's Enterprise Imaging platform solution contains proprietary licensing/software required for an effective operability of the system; therefore, only AGFA can provide licenses for the software updates that will be covered under the task order. Updates and upgrades to system software can only be provided by AGFA, as these are FDA regulated medical devices. These updates/upgrades are essential for the maintenance of the solution/tools contained therein. No other VA/DLA DinPACS Contract holder can support this requirement.
5. **Efforts to Obtain Competition:** Market research was conducted, details of which are in the market research section of this document. This effort did not yield any additional sources that can meet the Government's requirements. There is no competitive market for the required services.

6. **Actions to Increase Competition:** The OEM is the only company with qualified technical staff to support the system. No other business has the authority or qualified technical staff to support the system.
7. **Market Research:** A search of the Dynamic Small Business Search for Service Disabled Veteran Owned Small Business (SDVOSB)/ Veteran Owned Small Business (VOSB) vendors, was conducted on January 20, 2026, resulted in zero (0) SDVOSB/VOSB vendors using NAICS 811210. The Original Equipment Manufacturer (OEM) is the only company with qualified technical staff to support the system. No other business has the authority or qualified technical staff to support the system.
8. **Other Facts:** Establishing a task order off VA's existing DIN-PACS contract with AGFA is the most efficient means of fulfilling this requirement.

10. **Technical and Requirements Certification:** I certify that the supporting data under my cognizance, which are included in this justification, are accurate and complete to the best of my knowledge and belief.

ALAN
LIU

Digitally signed
by ALAN LIU
Date: 2026.02.12
11:22:37 -05'00'

Name: Alan X. Liu
Title: Chief HTM
Facility: NYHHS

11. **Determination that Anticipated Cost is Fair and Reasonable:** Prices on SPE2D116D0013 have already been determined to be fair and reasonable. Only items priced on SPE2D116D0013 will be included on this order.

12. **Contracting Officer's Certification (required):** I certify that the foregoing justification is accurate and complete to the best of my knowledge and belief.

KIMBERLY
WIATROWSKI

Digitally signed by
KIMBERLY WIATROWSKI
Date: 2026.02.11
16:43:44 -05'00'

Kimberly Wiatrowski
Contracting Officer
RPO East NCO2

13. Approvals in accordance with [VHAPG Part 816.505 Indefinite Delivery Contracts: Ordering](#).

- a. **One Level Above the Contracting Officer (Required over SAT but not exceeding \$900K):** I certify the justification meets requirements for other than full and open competition.

JOSEPH CELLINO

Digitally signed by JOSEPH
CELLINO

Date: 2026.02.23 09:40:10 -05'00'

Joseph Cellino
Supervisory Contract Specialist
Services Team 1 Branch Chief
VHA RPO-E/Network Contracting Office (NCO) 2

HIGHER LEVEL APPROVAL (Required for orders over \$900,000 to \$20Million):

- b. **VHA Advocate for Competition/Head of Contracting Activity (HCA) REVIEW AND APPROVAL :**
I have reviewed the foregoing justification and find it to be complete and accurate to the best of my knowledge and belief and approve for other than full and open competition.

Gerald F. Jacobs
Executive Director, Regional Procurement Office East
VHA Head of Contracting Activity (HCA)
Contracting Activity Advocate for Competition